



File No.: EXP202300313

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on December 7, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 5.1.c) of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that he is a neighbor of the respondent and that the latter has installed a video surveillance camera in his home aimed at the public road and at the complainant's residence, without having authorization for this.

He provides an image showing the location and orientation of the claimed camera.

The documents submitted are:

- photograph showing the location of the camera

SECOND: The notification, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not received by C.C.C., to whom it was addressed, and the notification was reiterated on February 6, 2023, by certified postal mail, which was again returned marked "unknown."

THIRD: On March 7, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On June 29, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: After the aforementioned initiation agreement was notified, the respondent submitted allegations in which, in summary, he stated that:

ALLEGATIONS

FIRST. The video surveillance system installed in my home has been oriented since its installation to capture, exclusively, images from the interior of my property. In no case was the location or orientation of the camera intended to capture images of the exterior or, much less, of the neighboring complainant's residence. Therefore, the only images that the camera captures and to which I have access are always from the interior of my property and from the door of my home.

SECOND. Given the current location of the camera, it is perfectly possible for third parties to manipulate and reorient it from outside my property without the possibility of capturing any images of the act. In this sense, it is easy for anyone from the outside to, at a given moment, turn the camera so that it appears to be aimed at the street or at a neighboring residence and then return it to its initial orientation.

THIRD. The reason for installing the video surveillance system is due to a situation of fear that my family (two minor daughters) suffers from, generated by the complaining neighbor. Apart from the deliberate noise problems that the complainant continuously subjects us to (e.g., playing extremely loud music when leaving his home), for which I have called the Police on numerous occasions, I have had to file several complaints with the Police against him, the first for the puncturing of one tire of my vehicle, parked at the door of my house, naming the complaining neighbor as a possible author. The other complaint was to document violent actions at late hours of the night and dawn that this neighbor commits against my family. Loud banging on walls, abrupt noises from doors and cabinets, loud music at untimely hours, and gestures of contempt towards my minor daughters, family, and friends who visit us, as well as towards us as parents.

In one of the complaints, we mentioned the fear that the minors feel and the need to place a camera in order to monitor access to the home, the access garden, to detect uncomfortable situations while we are at home or away from it.

For these reasons, and to provide some peace of mind to my family, I decided to install the video surveillance camera.

The complaints dated 12/9/2022 - 34/9/2022 - 10/11/2022 are submitted as DOCUMENTARY 2.

FOURTH. To prove the location and orientation of the camera, I provide photos of the original location where it was installed (document 5), where it can be clearly seen that its orientation is exclusively towards my property and its accessibility from the outside. I also provide a photo of its disassembly after receiving this notification.

The photos are submitted as DOCUMENTARY 5.

FIFTH. In order to prevent possible future manipulations of the camera by third parties from outside my property, I have relocated the camera to another place, further inside my home, where such manipulation is not accessible. To prove this fact, I provide photos of the new location and its orientation, where it is clearly oriented towards the interior of my home (documents 6 and 7).

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The photos are submitted as DOCUMENTARY 6 and 7.

The photos are submitted as DOCUMENTARY 6 and 7 of the purchase invoice for the camera.

SIXTH. After the facts presented, it is evident that there has been no violation of Article 5.1.c) of the GDPR since the personal data captured is "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed," as they have only been captured and processed for the purpose of preserving the safety of individuals and property, as well as my home. Furthermore, in any case, if the orientation of the camera was towards the door of my house, for the purpose mentioned in the previous paragraph and due to what is stated in the THIRD allegation, it may have captured a minimal portion of the public road corresponding to the access to the entrance door of my home (in no case have images of the claimant neighbor's home been captured), this would be covered and justified by the regulation that establishes that the principle of data minimization in the field of video surveillance excludes the capture of images of the public road, except when, for the protection of private spaces where cameras have been installed on the facade or interior, it may be necessary to guarantee the security purpose by recording a minimal portion of the public road.

That is to say, in a positive sense, the capture of a minimal portion of the public road would be lawful when it is essential for that purpose or when it is impossible to avoid it due to its location.

Taking into account the allegations made, I REQUEST that having submitted this document, along with its attachments, it be accepted; that it be considered a timely and legally formulated WRITTEN ALLEGATION against the initiation of the sanctioning procedure with FILE NUMBER EXP202300313, and after the pertinent legal course, issue a resolution declaring the non-existence of the infringement, ordering, in summary, the filing of the initiated sanctioning file.

SIXTH: On August 11, 2023, a proposal for resolution was made, proposing that the Director of the Spanish Agency for Data Protection proceed to file the actions initiated against B.B.B., with NIF***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

The proposal for resolution was legally notified on August 13, 2023, and the respondent has not made any allegations.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts proven in the present procedure,

PROVEN FACTS

FIRST: It is recorded, according to the photograph submitted to the file by the claimant, that the respondent has installed a camera in their home that, at the time the photograph was taken, is oriented

in such a way that it is capable of capturing the public road.

SECOND: It is recorded, according to the photographic report submitted by the respondent, that, in the initial location of the camera, it can be accessed from the exterior of the home and reoriented.

THIRD: It is recorded, according to documentation submitted by the respondent, that they have proceeded to modify the location of the camera by installing it inside their home in such a way that it cannot be accessed from the outside, orienting it towards their property, without capturing images of other homes.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

In response to the allegations presented by the respondent, the following should be noted:

-The respondent alleges that the video surveillance system installed in their home has been oriented since its installation to capture exclusively images of the interior of their property, and that neither the location nor the orientation of the camera was arranged to capture images of the exterior or, much less, of the neighboring property of the claimant. Therefore, the only images that the camera captures and to which they have access are always from the interior of their property and the door of their home, although it is possible, given its initial location, that manipulation and reorientation were carried out by third parties from the exterior.

However, to prevent possible future manipulations of the camera by third parties from the exterior of the property, they have proceeded to relocate the camera to another place, further inside their home, where it is not accessible.

In this regard, this Agency has proceeded to examine the evidence submitted, concluding that, indeed, there is a possibility that the camera was

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manipulated at some point in such a way that it appeared to be oriented outward.

Given that there is no conclusive evidence in the file indicating that, at any time, the party being claimed had access to images of the public road or the residence of the claiming party, beyond a photograph submitted with the claim, in which a camera is observed that, due to its orientation at the time the photograph was taken, was capable of capturing unauthorized images, and applying the principle of presumption of innocence, it is concluded that it is not possible to propose a sanctioning resolution in the present file, as there is no demonstrated infringement of data protection regulations.

III

Article 5.1 c) of the GDPR states the following: Personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of persons and property, as well as their facilities.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing, only the relevant personal data that is pertinent and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be

adjusted and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same. In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the area of video surveillance implies that images of the public road cannot be captured, since the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the purpose of security.

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That is to say, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. And, in such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not obtain images of private spaces of third parties and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the aim of intimidating them or affecting their private sphere without a justified cause is not permitted.

Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces.

In the present case, from the documentation submitted to the file, it can be inferred that the party being claimed has not captured images of the public road or of the property of the claiming party.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: To proceed with the filing of the present proceedings.

SECOND: TO NOTIFY this resolution to B.B.B., with NIF ***NIF.1

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be terminated.

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